

24STCV01513 24STCV01513

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Case Number: 24STCV01513 Hearing Date: August 20, 2026 Dept: 735

Roman, et al. v. General Motors LLC

Defendant's Motion for Summary Judgment, or
in the alternative, Motion for Summary Adjudication

BACKGROUND

On January 19, 2024, Plaintiffs Edgar Roman and Sara Sanjuan filed a complaint against Defendant General Motors, asserting causes of action for (1) breach of the express warranty; (2) breach of the implied warranty; and (3) violation of Song-Beverly Action Section 1793.2. Plaintiffs allege Defendant refused to repurchase or replace their 2019 Chevrolet Silverado after it was delivered to Defendant's authorized repair facilities for repair of nonconformities.

Defendant moves for summary judgment, or in the alternative, summary adjudication of Plaintiffs' causes of action.

DISCUSSION

First and Third Causes of Action for Breach
of Express Warranty

Defendant asserts that the first and third causes of action for breach of the express warranty fail because Plaintiffs purchased the subject vehicle used rather than new.

The California Supreme Court has held that

Song-Beverly provides no relief for breach-of-express-warranty claims brought by plaintiffs who purchased used vehicles from a retail seller, even where there is some balance remaining on the manufacturer's warranty. (*Rodriguez v. FCA US, LLC* (2024) 17 Cal.5th 189, 202.) In so holding, the Court determined that Song-Beverly provides relief specifically to purchasers of cars sold with a full warranty, but not to previously sold cars accompanied by some balance of the original warranty. (*Id.*) The Court noted that this conclusion follows directly from the text of Song-Beverly itself and that "the phrase 'other motor vehicle sold with a manufacturer's new car warranty' was not intended to cover any used car with an unexpired new car warranty." (*Id.*)

Defendant presents evidence showing Plaintiffs leased the vehicle in 2019 and then later purchased the vehicle under the contractual purchase option contained in the original Lease Agreement. Defendant argues that Plaintiffs' purchase of the vehicle after the lease was a purchase of a "used" vehicle and thus precludes recovery under the express warranty under *Rodriguez*.

In opposition, Plaintiffs argue that the holding of *Rodriguez* does not apply because Plaintiffs are not purchasers of a "used" vehicle from third-party owners or sellers. Instead, Plaintiffs assert they are the original warranty holders who leased the vehicle new from Riverside Chevrolet, an authorized Chevrolet dealership, and later exercised their contractual right to purchase. Plaintiffs present evidence showing no other retail consumer owned, leased, or possessed the Subject Vehicle before Plaintiffs exercised the option to purchase. Plaintiffs present evidence showing GM issued its New Vehicle Limited Warranty in connection with the March 2019 lease. Plaintiffs assert that their claims arise from that same warranty relationship—not from a later purchase of another consumer's used vehicle.

The Court finds Plaintiffs have established a triable issue of fact as to whether the vehicle was purchased "used" for the purposes of the Song-Beverly Act. *Rodriguez* addresses whether the Act's "new motor vehicle" definition reaches previously owned vehicles sold with only a remaining warranty balance; it did not decide whether original lessees who received the manufacturer's new-vehicle warranty at lease inception forfeit statutory protection by exercising a purchase option contained in the original lease. (*Rodriguez v. FCA US LLC* (2024) 17 Cal.5th 189, 202.) Defendant cites no authority directly holding

original lessees who subsequently purchase the vehicle are precluded from recovery under the Song-Beverly Act.

The

Court denies Defendant's motion for summary judgment. The Court denies Defendant's motion for summary adjudication of the first and third causes of action.

Second Cause of Action for Breach of Implied Warranty

Defendant asserts that the second cause of action also fails because Plaintiffs purchased the vehicle used. (See *Nunez v. FCA US LLC* (2021) 61 Cal.App.5th 385, 399.) As stated, Plaintiffs have created a triable issue of fact as to whether the vehicle was purchased "used." The Court denies Defendant's motion for summary adjudication of the second cause of action.

Damages on Residual Value of Lease

Defendant argues that that Court should find that Plaintiffs are not entitled to seek damages on the residual value of their prior lease of the Silverado because they were not obligated to purchase the Silverado at the end of the lease and instead actively chose to do so. In support of this argument, Defendant cites *Crayton v. FCA US LLC* (2021) 63 Cal.App.5th 194, 205.

Code

of Civil Procedure § 437c(f)(1) provides that "A motion for summary adjudication shall be granted only if it completely disposes of a cause of action, an affirmative defense, a claim for damages, or an issue of duty." Under this section, "a claim for damages" refers to punitive damages under "Section 3294 of the Civil Code." Defendant requests the Court adjudicate the issue of damages related to the residual value of the original lease. This adjudication would not completely dispose of any claims or defenses. The Court denies Defendant's motion for summary adjudication on the issue of damages relating to the residual value of the lease.

CONCLUSION

The Court denies Defendant's motion for summary judgment, or in the alternative, motion for summary adjudication.

Defendant to give notice.